

a corporation (*h*), and generally to all persons clothed with a fiduciary character (*i*).

10. **Heir or devisee purchasing incumbrance.** — Even an *heir* has been so far regarded as a trustee for *creditors of the ancestor*, that he cannot hold an incumbrance as against them for more than he gave for it (*j*), and it is presumed, though there is no decision upon it, that the rule applies equally to a devisee as between him and the creditors of the testator (*k*).

But either an heir or a devisee who was himself an incumbrancer at the death of the ancestor or testator, may buy up a prior (but not a subsequent) incumbrance, and hold it for the whole amount due; for his own incumbrance is by title paramount and not affected by any trust for creditors, and the Court considers him to that extent as a stranger, and allows him to buy up the prior incumbrance not as heir or devisee, but for the protection of his own incumbrance (*l*). And if the heir or devisee acquire the prior incumbrance *not by his own act or procurement* but by the *bounty of another*, as either by gift *inter vivos*, or by will, there seems no reason on principle why the heir or devisee should not hold the prior incumbrance for the whole amount due; and *semble* it can make no difference whether the donor was the prior incumbrancer himself, or was a stranger who had purchased from the incumbrancer at an under-value (*m*).

* And an heir or devisee may, it seems, hold an [*280] incumbrance which he has bought up himself at an under-value for the whole amount as against a subsequent incumbrancer, though not as against the general creditors of the ancestor or testator; as if A. be the first incumbrancer, B. the second, and C. the heir or devisee, and C. buys up A.'s incumbrance, here if B. have a charge merely and is not a creditor, or his debt is barred by the statute, there is no

(*h*) *Bowes v. City of Toronto*, 11 Moore, P. C. C. 463.

(*i*) *Docker v. Somes*, 2 M. & K. 665.

(*j*) *Lancaster v. Evors*, 10 Beav. 154; and see 1 Ph. 354; *Brathwaite v. Brathwaite*, 1 Vern. 334; *Long v.*

Clopton, 1 Vern. 464; *Darcy v. Hall*, 1 Vern. 49; *Morret v. Paske*, 2 Atk. 54.

(*k*) See *Long v. Clopton*, 1 Vern. 464; *Davis v. Barrett*, 14 Beav. 542.

(*l*) *Davis v. Barrett*, 14 Beav. 542; *Darcy v. Hall*, 1 Vern. 49.

(*m*) See *Anon.* 1 Salk. 155.